

2:00 PM

LINE 2

23-CIV-06074

SUNG SIM PARK, ET AL. VS. LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.,  
ET AL.

SUNG SIM PARK

LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.

SEAN P. RILEY

SUZIE TAGLIERE

---

AMENDED MOTION OF DEFENDANTS LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION AND GARY ERNST FOR  
SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

**TENTATIVE RULING:**

The Motion for Summary Judgment or, in the alternative, Summary Adjudication by Defendants Lynda Lake Gardens Homeowners Association (“Association”) and Gary Ernst (“Ernst”) (collectively “Defendants”) to the First Amended Complaint (“FAC”), which is supplemented by the First Supplemental Complaint (“FSC”), by Plaintiffs Sung Sim Park (“Park”) and Matthew Moskewicz (“Moskewicz”) (collectively “Plaintiffs”), is DENIED as to summary judgment, and DENIED as to summary adjudication of the First through Sixth Cause of Action and the issue of damages.

***1. Background***

In 2020, Plaintiffs purchased property located at 3875 Jefferson Avenue in Redwood City (“Plaintiffs’ property”), which is part of the Lynda Lake Gardens development (“LLG”). This action concerns in part Plaintiffs’ access to the central lake, Lynda Lake, in LLG and its surrounding pathway easements. Lynda Lake is located on its own lot known as Lot A. Defendant Lynda Lake Gardens Homeowners Association, Inc. (“Association”), through its Board, governs LLG.

Plaintiffs’ property is next to properties owned by Defendant Gary Ernst (“Ernst”), which are located at 3865 Jefferson Avenue and 937 Lakeview. Plaintiffs claim they hold an easement that runs across these properties to allow them to access the lake, which is often blocked and impeded by parked cars belonging to Ernst or his tenants. The easement and other portions of Lot A are also alleged to have impediments that make it difficult for Plaintiffs to use. Park suffers from polio, which renders traversing on uneven and irregular surfaces difficult. Plaintiffs allege that due to Park’s disability, they requested maintenance and repairs to the portions of the pathway easements and Lot A pursuant to the Second Amendment to Restated Declaration of Covenants, Conditions and Restrictions (“CC&Rs”) in operation at that time, but the Association claimed it did not have any common areas per Davis-Stirling, FEHA, FHAA or other law and that pathway easement improvements may only occur with the permission of the lot owner upon which a pathway easement crosses at Plaintiffs’ cost.

---

---

In August 2023, Ernst advised LLG owners that he would be installing a paver stone pathway within the 3865 Jefferson pathway easement. Plaintiffs objected to the pathway plans, but Ernst proceeded to construct it in September 2023. On September 5, 2023, the Board claimed to have approved the pathway in a meeting that included the vote of Ernst. However, the Board also stated that Ernst was not obligated to obtain Board approval for his improvements because it was not needed unless they lie or cross over into Lot A. Plaintiffs claim that the LLG governing documents make no distinction regarding the Board's obligations as to Lot A and pathway easements. Moreover, they contend the location of the pathway work took place in the northern portion of Lot A.

On March 11, 2024, Ernst constructed an approximate 13' fence entirely within the 937 Lakeview pathway easement on his property. When Plaintiffs demanded that it be removed, the Association and Ernst responded that Plaintiffs do not have a pathway easement over Ernst's 937 Lakeview lot, even though Plaintiffs claim that the 1947 Map of LLG and the governing documents provide for such an easement.

Plaintiffs further bring this action alleging that Ernst's landscaping blocks their view of the lake. The vegetation on Ernst's property exceeds ten feet in some places, such that the view of the lake they had when they purchased the property is now substantially blocked. Plaintiffs requested that Ernst trim and remove the vegetation and that the Association enforce the CC&Rs to trim and remove the vegetation. Plaintiffs also discovered that Ernst intends on subdividing and constructing two new residential units at 3865 Jefferson that will further impede and obstruct Plaintiffs' view of the lake, which violates the CC&Rs and other governing documents.

Although the applicable CC&Rs at the time were the Second Amended CC&Rs ("2A CC&Rs"), the Board subsequently proceeded to modify the CC&Rs. Plaintiffs claim the Association attempted to delete and/or change the CC&Rs that Plaintiffs were attempting to enforce after they filed their Complaint to eliminate Plaintiffs' rights.

The FAC and FSC allege six causes of action: (1) Declaratory Relief; (2) Breach of Governing Documents; (3) Breach of Fiduciary Duty; (4) Negligence; (5) Negligence Per Se; and (6) Private Nuisance.

Defendants seek summary judgment to the FAC and FSC or, in the alternative, summary adjudication to each cause of action as well as to damages.

## ***2. Legal Standard***

The pleadings play a key role in a summary judgment motion by framing the outer measure of materiality in a summary judgment proceeding. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4<sup>th</sup> 486, 493.) Thus, the first step in analyzing a summary judgment motion is identifying the issues framed by the pleadings since it is these allegations to which the motion must respond. (*Ibid.*) The second step is whether the moving party's showing establishes facts that negate the claim and justify a judgment in the moving party's favor. (*Id.*, at 493-494.) If this second step is

---

---

met, then the third and final step is to determine whether the opposition demonstrates a triable issue of material fact. (*Id.* at 494.)

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff's claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Ibid.*) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) The defendant cannot just point out through argument that plaintiff does not possess and cannot reasonably obtain needed evidence, but defendant must present evidence. (*Ibid.*)

### ***3. First Cause of Action for Declaratory Relief***

Defendants' Motion to the First Cause of Action is DENIED.

"Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property...may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (Code Civ. Proc., § 1060.)

Defendants argue that this claim fails as a matter of law because: (1) Plaintiffs have no right to a view as a matter of law, (2) Plaintiffs have no authority to require improvements to Ernst's property, and (3) the Association's decision to install pathways, determine that Ernst's vegetation and design plans do not violate the CC&Rs, and adoption of the amended CC&Rs, Policy for Lynda Lake Pathways and Easements and Enforcement Policy and Schedule of Fines, and determine that Plaintiffs violated CC&Rs 3.6 are protected by the Business Judgment Rule.

However, Plaintiffs correctly point out that Defendants fail to meet their initial burden to this cause of action because Defendants' arguments do not completely dispose of this cause of action even assuming they meet their burden as to the issues raised by them. (Plaintiffs' Opposition, pp. 14:13-15:9.) The FSC alleges an actual controversy exists to 11 different matters. (FSC, ¶ 122.)

---

---

One of these alleged controversies is Defendants' obligation to engage in the interactive process and reasonably accommodate and render Lot A and pathway easements safe and usable for Plaintiffs and other disabled persons pursuant to FEHA, FHA and other law. (*Ibid.*) As discussed above, the pleading frames the issues that Defendants must address in seeking summary judgment. (See *Hutton, supra*, 213 Cal.App.4th at p. 493.) None of Defendants' arguments address this alleged controversy. As such, the court does not need to reach Defendants' arguments to this cause of action because Defendants fail to meet their initial burden by addressing all the allegations pleaded in support of this cause of action.

#### ***4. Second Cause of Action for Breach of Governing Documents***

Defendants' Motion to the Second Cause of Action is DENIED.

#### **Defendant Ernst**

Defendants argue that Plaintiffs cannot establish any breach by Ernst of the CC&Rs.

The FSC alleges that Ernst breached the Association's CC&Rs and other governing documents by, among other things, failing to trim vegetation blocking Plaintiffs' view, proceeding or attempting to proceed with a subdivision at 3865 Jefferson/937 Lakeview, undergoing 3865 Jefferson and 937 Lakeview pathway easement improvements, constructing fences, driveway and other obstructions within pathway easements and Lot A and prohibiting Plaintiffs' access to and use of the pathway easement on 937 Lakeview contrary to the CC&Rs and other governing documents and applicable law. (FSC, ¶ 131.)

Defendants argue that Plaintiffs cannot establish any breach by Ernst's proposed subdivision of his property because the CC&Rs allow him to subdivide his property. The CC&Rs provide that the eleven original lots may be subdivided one time so long as no more than one additional lot is created. (DSSUMF no. 56.) Ernst's property is an original lot that has not previously been subdivided. (DSSUMF no. 57.)

However, Plaintiffs raise a triable issue of material fact as to whether Ernst's subdivision of his property violates section 3.14 of the CC&Rs. The FSC alleges that the subdivision of two residential units on Ernst's property will further impede and obstruct Plaintiffs' view of Lynda Lake. (FSC, ¶¶ 45-46.) Prior to amendment, section 3.14 of the CC&Rs stated:

3.14 All new structures and landscaping on any Lot shall be sited, constructed or planted in a way which, as much as possible, will minimize the blockage of the present view of the Lake Lot of any Owner. Any present or future Owner who applies for an exterior building permit from any governmental agency for any construction or landscaping improvements must provide written notice of the application together with a copy of the proposed design, site location and the elevations by mail or personal delivery to every other Owner not less than fifteen (15) days prior to filing the application.

---

---

(DSSUMF no. 42; Plaintiffs' Response to DSSUMF no. 42.) Plaintiffs claim that the proposed new structure on Ernst's property, Parcel A, includes a home with a second story on the north side that will substantially block Plaintiffs' present lake view and would be minimized if constructed on the southern side. (PAMF no. 11.) As such, Plaintiff raises a triable issue of material fact as to Ernst's violation of section 3.14.

As a result, the court does not reach Defendants' remaining arguments as to the other alleged breaches by Ernst.

### **Defendant Association**

Defendants also argue that Plaintiffs cannot establish any breach by the Association of the CC&Rs.

The FAC alleges that the Association, by and through its Board, has breached the Association's governing documents as provided herein and by, among other things, failing or refusing to survey, repair, maintain, improve and remove Ernst's encroachments and obstructions from Lot A and pathway easements, prohibiting Ernst's obstruction of Plaintiffs' 3875 Jefferson view, prohibiting Ernst's pathway improvements' allowing Ernst's blockage of Plaintiffs' access to and use of the pathway easement on 937 Lakeview and failing to reasonably accommodate Sung Sim's disability by, among other things, pathway easements safe and usable for Plaintiffs pursuant to the CC&Rs and other governing documents and applicable law, and determining that Ernst's obstruction of Plaintiffs' view and that Ernst's spite vegetation and design plan for the construction of two new houses on subdivided 3865 Jefferson do not violate section 3.14 of the CC&Rs or other CC&Rs and determining that Plaintiffs' common boundary fence and gate violate section 3.6 of the CC&Rs or other CC&Rs. (FSC, ¶ 131.)

Defendants contend that they did not breach the CC&Rs by failing to remove Ernst's encroachments and obstructions from Lot A because the large majority of the perimeter of Lynda Lake already had some manner of pathway, including paver stone pathways. (DSSUMF nos. 21-22.) The portion of the pathway installed in 2023 were the only portions that had yet to be improved. (DSSUMF no. 23.) Defendants assert that the Board's decision to allow installation of the pathway was consistent with the Board's prior decisions regarding improvements to Lot A.

Defendants fail to meet their initial burden as to this alleged breach as this argument does not show that the Association did not breach the CC&Rs regarding the pathway. Moreover, as Defendants expressly acknowledge, the alleged breach is failing to remove Ernst's encroachments and obstructions from Lot A. Therefore, Defendants' contention that other pathways already existed is insufficient to meet its initial burden on this issue.

Furthermore, Plaintiffs raise a triable issue of material fact as to whether the Association breached the CC&Rs regarding the pathway by failing to comply with FEHA for common use areas. (See *Auburn Woods I Homeowners Assn. v. Fair Employment & Housing Comm.* (2004) 121 Cal.App.4th 1578, 1592.) FEHA common use areas include passageways among and between buildings, and recreational areas. (Cal. Code Regs, tit. 2, § 12005(g).) Sections 2.1A of

---

the CC&Rs provides that the Association shall maintain, repair, replace (when necessary), restore, operate and manage the Lake Lot and Easements and all facilities, improvements, equipment and landscaping thereon, and all property that may be acquired by the Association. (PAMF no. 25.) Section 2.1F of the CC&Rs further provides that the Association shall maintain and operate the Lake Lot and Easements in accordance with all applicable municipal, state, and federal laws, statutes and ordinances, as the case may be. (PAMF no. 26.) The Association shall also, as a separate and distinct responsibility, take reasonable action to require that third parties (including Owners and their guests) utilize the Lake Lot and Easements in accordance with the aforementioned laws, and take reasonable action to correct such violations when it becomes aware of any violation. (*Ibid.*) Plaintiffs requested reasonable accommodations with the pathway for Park's disability, but the Board did not assess any reasonable accommodations and claimed that it did not operate or manage the pathway easements. (PAMF no. 27-39.) Thus, Plaintiff raises a triable issue of material fact as to whether the Association breached sections 2.1A and 2.1F.

Defendants further contend that any breach of the CC&Rs is protected by the Business Judgment Rule. (*See Lamden v. La Jolla Shores Clubdominium Homeowners Association* (1999) 21 Cal.4th 249.) In *Lamden*, the California Supreme Court found that "[w]here a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas, courts should defer to the board's authority and presumed expertise." (*Id.*, at p. 253.) In order for the Court to determine whether the Association's actions were taken in good faith and with regard for the best interest of the Association and its members though, evidence needs to be provided. Defendants did not present any evidence with their moving papers that this decision not to grant Plaintiffs' proposed reasonable accommodations regarding the pathway was made upon reasonable investigation, in good faith and with regards for the best interests of the community, or that this decision involved discretion. Although Defendants provide the supplemental declaration of David Alvarez with their reply claiming the Association engaged in an interactive process with Plaintiffs throughout 2023 (Supp. Alvarez Decl.), a reply shall not include any new evidentiary matter and therefore the court does not consider it. (Code Civ. Proc., § 437c, subd. (b)(4) [reply shall not include any new evidentiary matter].) Defendants therefore fail to show that the Business Judgment Rule operates as a complete defense to this cause of action against the Association.

### ***5. Third Cause of Action for Breach of Fiduciary Duty***

The Motion to the Third Cause of Action is DENIED. This cause of action is alleged only against the Association.

The Third Cause of Action alleges the Association, through its Board, was obligated to comply with the CC&Rs and to enforce them. (FSC, ¶ 137.) Plaintiffs allege the same breach in support of this cause of action as alleged in the Second Cause of Action regarding refusing to engage in the interactive process and reasonably accommodate and render Lot A and pathway easements

---

safe and usable for Plaintiffs and other disabled persons pursuant to FEHA, FHA and other law. (FSC, ¶ 138.) For the same reasons the court found a triable issue of material fact as to the Association's breach for the Second Cause of Action, the court finds that a triable issue of material fact also exists as to the alleged breach of fiduciary duty by the Association for this cause of action.

Defendants also argue Plaintiff cannot establish any damages. Defendants rely on Plaintiffs' discovery responses, which they contend fail to provide any facts to support damages. (DSSUMF nos. 53-54.) However, as discussed above, for a defendant to rely on plaintiff's absence of evidence to meet defendant's initial burden, defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4<sup>th</sup> at p. 854.) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) These responses do not establish that Plaintiffs cannot reasonably obtain evidence to support damages. (DSSUMF nos. 53-54.) Instead, they show only that Moskewicz did not know the amount of damages at the time he served his responses. (*Ibid.*) Further, Defendants only cite to Moskewicz's responses to the Special Interrogatories. (Austrian Decl., ¶ 4, Exh. C.) Defendants do not provide similar discovery responses by Park or cite to any evidence to support an absence of evidence as to her damages.

In addition, the Third Cause of Action alleges that Plaintiffs incurred damages to their view and ability to use Lot A and pathway easements, diminution in value to their property, survey costs and emotional distress. (FSC, ¶ 139.) Defendants acknowledge that Plaintiffs state they paid \$9,260 for a survey of the development. (DSSUMF no. 55.) Defendants fail to explain why these damages are insufficient to support this cause of action. Thus, the court finds that Defendants fail to meet their initial burden of showing that Plaintiffs cannot establish any damages.

Finally, even if Defendants met their initial burden, Plaintiffs provide evidence sufficient to raise a triable issue of material fact as to their damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

#### **6. Fourth Cause of Action for Negligence**

Defendants' Motion to the Fourth Cause of Action is DENIED.

In order to state a cause of action for negligence, a plaintiff must show: (1) the defendant owed plaintiff a legal duty; (2) the defendant breached that duty; (3) the breach proximately or legally caused; (4) plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4<sup>th</sup> 654, 662.)

Defendants argue that the breaches for this negligence claim are the same as alleged in Plaintiffs' Second Cause of Action, and therefore Defendants incorporate the same arguments. As discussed above in the Second Cause of Action, the court finds that a triable issue of material fact exists as to whether Defendants breached the governing documents. Accordingly, a triable issue of material fact also exists to this cause of action.

---

**7. Fifth Cause of Action for Negligence Per Se**

Defendants' Motion to the Fifth Cause of Action is DENIED.

"Under the doctrine of negligence per se, negligence will be presumed if: (1) a person violated a statute or regulation, (2) that violation injured another person or their property, (3) the injury was of a type the statute or regulation was designed to prevent, and (4) the person or property injured was of the class the statute or regulation was designed to protect." (*Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850, 865.)

The FSC alleges negligence per se based on Civil Code section 841.4, which provides that any fence or other structure that exceeds 10 feet in height maliciously erected or maintained to annoy an occupant of an adjoining property is a private nuisance. (FSC, ¶¶ 148-150.) Ernst's vegetation exceeds 10 feet in some places on his 3865 Jefferson property, and Plaintiffs claim that he grew and maintained the vegetation to substantially annoy Plaintiffs and block their view of Lot A. (FSC, ¶ 150.) Ernst had not overgrown his offending vegetation prior to Plaintiffs moving into their property and he failed to respond to their request to remove or cut it. (*Ibid.*)

Civil Code section 841.4, titled "Spite fences," states:

Any fence or other structure in the nature of a fence unnecessarily exceeding 10 feet in height maliciously erected or maintained for the purpose of annoying the owner or occupant of adjoining property is a private nuisance. Any owner or occupant of adjoining property injured either in his comfort or the enjoyment of his estate by such nuisance may enforce the remedies against its continuance prescribed in Title 3, Part 3, Division 4 of this code.

(Civ. Code, § 841.4.)

Defendants argue that Plaintiffs lack any evidence to show that Ernst maliciously grew or maintained vegetation on his property. In support, Defendants cite to DSSUMF no. 51. (Defendants' Memorandum, pp. 22:13-19.) However, Defendants do not include DSSUMF no. 51 in seeking summary adjudication to this cause of action. (See DSSUMF, Issue 5.) Thus, Defendants did not include it as a material fact.

Even if the court considers this fact though, Defendants' cited evidence does not show Plaintiffs lack evidence to support malice. Defendants once again rely on Plaintiffs' absence of evidence as to malice, citing to Plaintiffs' responses to the Association's request for facts to support Plaintiffs' cause of action for **nuisance**. (DSSUMF no. 51.) Special Interrogatory no. 16 asks to state all facts to support the Sixth Cause of Action for Private Nuisance. (Defendants' Compendium of Evidence, Exh. C.) It does not ask for all facts to support this cause of action for negligence per se. (*Ibid.*) Further, Defendants provide only the interrogatory response by Moskewicz. (*Ibid.*) Defendants present no evidence that Park responded similarly to

---

---

interrogatories or that she lacks any evidence as to malice. Defendants therefore fail to meet their initial burden of showing Plaintiffs lack any evidence as to malice.

### **8. Sixth Cause of Action for Private Nuisance**

Defendants' Motion to the Sixth Cause of Action is DENIED.

In order to state a cause of action for private nuisance, a plaintiff must allege: (1) interference with the plaintiff's use and enjoyment of the property, (2) that the invasion of the plaintiff's interest in the use and enjoyment of the land was substantial, and (3) that the interference with the protected interest is also unreasonable. (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937.)

The FSC alleges that Ernst and the Association have interfered with Plaintiffs' use and enjoyment of their 3875 Jefferson lot and the Lynda Lake Gardens pathway easement and Lot A as provided herein and by, contrary to CC&Rs, growing or allowing vegetation to be grown on Ernst's 3865 Jefferson lot that substantially impedes or blocks Plaintiffs view of the Lot A from their 3875 Jefferson lot, constructing or placing driveways, fences and other obstructions and constructing or allowing to be constructed pathways within Lot A, and failing to maintain, operate and manage pathway easements including, among other things, keeping the pathway easement across Ernst's 3865 Jefferson and 937 Lakeview properties clear of obstructions. (FSC, ¶ 154.)

Defendants argue that the private nuisance claim relates to the vegetation growing on his property. (DSSUMF no. 51.) Defendants contend that the question of an otherwise legal structure on a neighboring property impeding a view has already been addressed by California courts and held that an unpleasant appearance of neighboring property in and of itself does not give rise to the level of nuisance. (See *Oliver v. AT&T Wireless Servs.* (1999) 76 Cal.App.4th 521; see also *Posey v. Leavitt* (1991) 229 Cal.App.3d 1236.) As a matter of law, Defendants therefore claim that any vegetation on Ernst's property cannot be a nuisance.

However, Defendants rely on Moskewicz's responses to special interrogatories asking him to state all facts in support of his Sixth Cause of Action for Private Nuisance in the Complaint. (DSSUMF no. 51.) While Moskewicz responded that the vegetation blocking Plaintiffs' view constituted a private nuisance, he also stated that:

In approximately late 2021, Responding Party and Responding Party's spouse learned that Ernst intends on subdividing and constructing two new residential units at 3865 Jefferson that will further impede and obstruct Responding Party and Responding Party's spouse's view of Lynda Lake and other parts of Lynda Lake Gardens in violation of SARD Article 3.14 and other governing documents.

(Defendants' Compendium of Evidence, Exh. C.) Defendants fail to address this part of Moskewicz's response regarding a private nuisance. Therefore, the court does not reach

---

Defendants' argument regarding whether the vegetation growing on Ernst's property constitutes a nuisance because Defendants fail to address the entirety of Moskewicz's allegations. In other words, Defendants fail to meet their initial burden.

In addition, as previously discussed, Defendants fail to show that Park provided a similar response or any other evidence regarding her nuisance claim. Therefore, Defendants also fail to meet their initial burden as to Park.

Defendants also once again argue that Plaintiffs failed to state any facts to support their claim for damages based on diminution in value. (DSSUMF no. 53.) As already discussed in the Third Cause of Action for Breach of Fiduciary Duty, Defendants fail to meet their initial burden as the cited discovery response does not show that Plaintiffs cannot reasonably obtain evidence to support damages. Moreover, Plaintiffs proffer sufficient evidence to raise a triable issue of material fact as to their damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

### 9. Damages

Procedurally, the court finds it is unclear what Defendants are seeking as Defendants purport to seek both summary adjudication and summary judgment in Issue No. 7. Defendants state: "Issue No. 7: Defendants are entitled to summary adjudication as to each cause of action, and therefore summary judgment, because Plaintiffs are entirely unable to show damages." (Defendants' Amended Notice of Motion.) However, Defendants' Memorandum states "Five of Plaintiffs' causes of action have an essential element of damages. (*Haley supra* 153 Cal.App. 863 at 871-72 (breach of governing documents); *Pellegrini v. Weiss* (2008) 165 Cal.App.4th 515, 524 (breach of fiduciary duty); *Thomas v. Stenberg* (2012) 206 Cal.App.4th 654 (negligence and negligence per se); *Today's IV, supra* (2022) 83 Cal.App.5th at 1176. (private nuisance).)" (Defendants' Memorandum, p. 24:17-20.) Thus, Defendants do not contend that damages are an essential element of the First Cause of Action for Declaratory Relief. As such, Defendant are not entitled to summary judgment based on this damages argument.

Notwithstanding that it is unclear what Defendants are seeking, this issue appears procedurally improper. A party may only move for summary adjudication to a claim for punitive damages. (See Code Civ. Proc., § 437c, subd. (f)(1).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, ***one or more claims for damages***, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, ***that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code***, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (*Ibid.* (emphasis added).) "Notwithstanding subdivision (f), a party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to this subdivision." (Code Civ. Proc., § 437c, subd. (t).) Subdivision (t) requires a joint stipulation and approval by the court. (*Ibid.*) Therefore, while Defendants may argue that Plaintiff cannot establish the element of damages in separately seeking summary adjudication to a specific cause of action (which the court has already

---

addressed above), Defendants cannot separately seek summary adjudication solely as to damages. As framed in Issue no. 7, Defendants' summary adjudication of damages is therefore improper.

Notwithstanding this procedural defect, Defendants once again rely on the same evidence to support that Plaintiffs cannot establish damages as previously argued in the Third Cause of Action and Sixth Cause of Action. (See DSSUMF nos. 53-56.) Defendants again rely on discovery responses to argue Plaintiffs lack any evidence of damages. As already discussed above, Defendants fail to meet their initial burden because Moskewicz's discovery response does not show he will not be able to obtain evidence as to damages. Defendants also have not provided a lack of evidence by Park as they have not provided her discovery responses or any other evidence to show that she lacks evidence as to damages. Furthermore, Plaintiffs raise a triable issue of material fact as to whether they suffered any damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

### ***10. Evidentiary Objections***

Plaintiffs filed objections to Defendants' material facts in their separate statement rather than Defendants' evidence. As such, the court DECLINES to rule on them for failure to comply with the rules of court. (See Cal. Rules of Court, rule 3.1352, 3.1354 [providing for a party to make objections to evidence on a summary judgment motion].)

Defendants also filed objections to Plaintiffs' additional material facts in their separate statement rather than Plaintiffs' evidence. (Defendants' Objections nos. 1-17.) The court DECLINES to rule on them for failure to comply with the rules of court. (See Cal. Rules of Court, rule 3.1352, 3.1354 [providing for a party to make objections to evidence on a summary judgment motion].)

Defendants' objections nos. 18-25 are OVERRULED.

### ***11. Requests for Judicial Notice***

Defendants' and Plaintiffs' Requests for Judicial Notice are GRANTED.

### ***Conclusion***

Defendants' Motion is DENIED as to both summary judgment and summary adjudication.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

---

2:00 PM

LINE 3

24-CIV-05601

CORRINA RENTERIA AQUINO VS. DAVID ANDREAS FUCHS, ET AL.

CORRINA RENTERIA AQUINO  
DAVID ANDREAS FUCHSPETER W. DANIEL  
DEBORAH A. STEVENS

---

MOTION FOR LEAVE TO FILE LATE COMPULSORY CROSS-COMPLAINT

**TENTATIVE RULING:**

The court GRANTS defendant David Fuch's motion to file a cross complaint.

Code of Civil Procedure Section 428.10, subdivision (b) provides that a party against whom a cause of action has been asserted may file a cross-complaint setting forth: "(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. § 428.10, subd. (b).)

"If a party does not file a cross-complaint against its opponent "before or at the same time as the answer" (Code Civ. Proc., § 428.50, subd. (a)), that party "shall obtain leave of court" to file one (*id.*, subd. (c)). (See 5 Witkin, *Cal. Procedure* (5th ed. 2008) Pleading, § 1168, pp. 599-601.)" (*Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 295.) "Leave may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc. § 428.50, subd. (c).) Similarly,

[a] policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.

(*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–99.)

Plaintiff argues that defendant is acting in bad faith because he knew of the cause of action much earlier than the date stated in defendant's declaration. The court does not find any bad faith by defendant. While defendant may have known of facts earlier than he asserts, that factual finding is not something that can be decided on a motion for leave to file a cross-complaint or probably even on a demurrer. It is an extensive factual determination. Instead the court is guided by the policy that cases should be decided on the merits and that this cross-complaint is compulsory, meaning that the claims are lost if the court denies defendant the right to assert the cross-

---